

Type: CONSOLIDATED REAL PROPERTY
Recorded: 3/11/2024 1:50:51 PM
Fee Amt: \$26.00 Page 1 of 10
Buncombe County, NC
Drew Reisinger Register of Deeds

BK 6391 PG 151 - 160

References: Deed Book 1755, Page 539
Deed Book 1837, Page 11
Deed Book 1855, Page 587
Deed Book 4402, Page 418
Deed Book 1647, Page 1661

STATE OF NORTH CAROLINA
COUNTY OF BUNCOMBE

AMENDED AND RESTATED
DECLARATION OF PROTECTIVE
COVENANTS
FOR FOREST KNOLL SUBDIVISION

**THIS DOCUMENT REGULATES OR PROHIBITS THE DISPLAY
OF POLITICAL SIGNS.**

THIS AMENDED AND RESTATED DECLARATION OF PROTECTIVE COVENANTS FOR FOREST KNOLL SUBDIVISION, is made and entered into this the 22 day of January, 2024 by and the Forest Knoll Homeowners Association, Inc., a North Carolina nonprofit corporation (the "Association"), and all present and future owners of properties within the Forest Knoll Subdivision, as the same is more particularly described herein (collectively the "Owners"); the Association and Owners being sometimes hereinafter referred to collectively as the "Parties", and singularly as a "Party").

WITNESSETH:

WHEREAS, there has heretofore been recorded Protective Covenants for Forest Knoll Subdivision, the same being filed for registration the 28th day of July, 1993, and recorded in Deed Book 1755, at Page 539 of the Buncombe County Registry (the "Original Declaration"), with the Original Declaration affecting and pertaining to those lands shown in the plats recorded in Plat Book 60, Pages 178 & 179 of said Registry (the "Original Plat"); and

WHEREAS, pursuant to the Original Declaration, the Association was duly incorporated on February 14, 1994, upon the filing of Articles of Incorporation with the North Carolina Secretary of State; and

WHEREAS, there was subsequently recorded Protective Covenants for Forest Knoll Subdivision Phase II, the same being filed for registration the 15th day of February, 1995, and recorded in Deed Book 1837, at Page 11 of the Buncombe County Registry (the "Phase II Declaration"), which Phase II Declaration among other things subjected the real property shown in Plat Book 62, at Page 179 of said Registry, (the "Phase II Plat") to the Original Declaration; and

WHEREAS, there was subsequently recorded Restrictive Covenants for the Glen at Forest Knoll, the same being filed for registration the 29th day of June, 1995, and recorded in Deed Book 1855, at Page 587 of the Buncombe County Registry (the "Glen Declaration"), with the Glen Declaration affecting and pertaining to those lands shown in the plat recorded in Plat Book 64, at Page 42 of said Registry (the "Glen Plat"); and

WHEREAS, the Association and Owners of Lots subject to the Glens Declaration subsequently recorded an Amendment of Restrictive Covenants for the Glen at Forest Knoll; and Amendment of Protective Covenants for Forest Knoll (the "Merger Amendment"), the same being filed for registration the 9th day of May, 2007, and recorded in Deed Book 4402, pages 418-424 in the Buncombe County Registry, which among other things incorporated the Owners of the Lots shown on the Glen Plat into the Association; and

WHEREAS, the Lots and properties identified on the Original Plat, Phase II Plat, and Glen Plat adjoin each other and share a common access and other roadways; and

WHEREAS, the Parties acknowledge that the Subdivision shall be and include all of those Lots and other properties as depicted on the Original Plat, Phase II Plat, and Glen Plat, the same being hereinafter referred to collectively as the Plats, and that the Lots and other property depicted on such Plats be subject to this Declaration the same being filed for registration the 10th day of August, 2022, and recorded in Deed Book 1647, pages 1661 in the Buncombe County Registry, which among other things incorporated the Owners of the Lots shown on the Glen Plat into the Association; and

WHEREAS, the Parties have determined that the rental of dwellings within the Subdivision on a short-term basis is not consistent with the nature and character of the Subdivision, is not consistent with the expectation of the Parties when they purchased their homes and properties within the Subdivision, and that such rentals place an unreasonable burden on the infrastructure within the Subdivision; and

WHEREAS, the Parties desire to amend the Declaration to restrict the rental of dwellings within the Subdivision as provided herein; and

WHEREAS, the Parties desire to further amend and restate the terms and conditions of the Original Declaration, Phase II Declaration, and Glen Declaration as more particularly set forth herein; and

WHEREAS, it is the intent of the Parties that this amendment and Declaration be adopted pursuant to Section 2-117 of Chapter 47F of the North Carolina General Statutes, such chapter being commonly referred to as the North Carolina Planned Community Act (the “Act”); and

WHEREAS, in accordance with the Act, and by a ballot vote pursuant to the provisions of N.C.G.S. 55A-7-08, this Amendment has been approved by Owners representing greater than sixty-seven percent (67%) of all votes of the Association;

NOW, THEREFORE, for and in consideration of the premises, the mutual covenants and conditions contained herein, and for the mutual advantage and benefit to all the present and future Owners of Lots and properties within the Subdivision, the Parties do hereby establish, promulgate and declare this Amended and Restated Declaration of Protective Covenants for Forest Knoll Subdivision (hereinafter the “Declaration”) to apply to all of said Lots and to all persons owning said Lots as covenants running with the land, binding upon the Parties hereto and their successors in interest forever.

1. LAND USE:

- A. Residential Use: No Lot shall be used except for residential purposes. No Lot shall be used for any type of business or commercial endeavor. Provided, however, that this restriction shall not prohibit a home office or occupation conducted from a dwelling on a Lot so long as it does not have customers, suppliers, delivery trucks, or clients coming to the Lot or otherwise increasing traffic within the Subdivision, and which does not otherwise violate any other provisions of this Declaration. No Lot shown on recorded Plats shall be re-subdivided as to create an additional Lot. No portion of any Lot less than the whole thereof shall be sold or conveyed by any Owner of any Lot so as to attempt to create an additional building Lot; nor shall any portion of any Lot be sold or used to convey right-of-way to adjoining land not within the Subdivision.

- B. Leasing or Renting: To preserve the nature and character of the Subdivision as an owner-occupied residential community, the leasing or renting of dwellings within the Subdivision is restricted as follows:
 - (i) No dwelling, including any room or other portion of a dwelling, or any other structure on a Lot within the Subdivision, shall be Leased or Rented for a term of less than twelve (12) months in duration. Early termination of a rental agreement whether by the Owner or Occupant, or the failure of the Occupant to take possession of the leased dwelling at the commencement of the rental term or vacate the leased dwelling prior to expiration of the minimum rental term contemplated herein, shall in no way be construed to permit the Owner to re-let such dwelling during the term of such rental.

 - (ii) For the purposes of this Section 1(B), "Leasing" or "Renting" shall be defined as the occupancy of a dwelling, any portion of a dwelling, or any other structure located on a Lot within the Subdivision, by any person other than its Owner, for which the Owner receives any consideration or benefit, including a fee, service, barter, or otherwise.

(iii) Without limiting the authority of the Board to establish rules and regulations as otherwise permitted in the Declaration and Bylaws of the Association, or otherwise in accordance with applicable law, the Parties specifically acknowledge and agree that the Board of Directors of the Association shall have the power and authority to make and enforce rules and regulations with respect to the rental of dwellings and other properties within the Subdivision, including for the purpose of avoiding circumvention of such restrictions, but which are consistent with the restrictions contemplated herein.

(iv) The terms of this provision shall apply to all Lots purchased after the recording of this Amended and Restated Declaration. They shall not apply to those Lot Owners presently renting their entire dwelling, or any part thereof, or any other structure located on their Lot, until such time as those Lot Owners convey their Lot to a subsequent owner, at which time the provisions of this provision shall apply.

2. BUILDING TYPE: No building shall be erected, placed or permitted on any Lot other than one detached single-family residential dwelling not to exceed two stories (excluding basement) and a private garage for not more than four cars.
3. ARCHITECTURAL CONTROL: No building shall be erected, placed, or altered on any Lot until the complete construction plans and specifications have been submitted and approved by the Board of Directors or a duly appointed Architectural Committee of Owners. All plans must show elevations, specifications, external colors and landscaping. No asbestos shingles or aluminum siding shall be used on any exterior wall. Any exterior wall of concrete block, cinder block, or any similar block construction shall be veneered in brick, rock, or stucco. The Board or Architectural Committee, if it is created, shall have the right to reject any plan that is not in keeping with home styles adaptable to earth tone colors and wooded settings, such as ranch style, country style, farmhouse, traditional, etc. No alterations in said plans may be made after approval thereof except by and with written consent of the Board or Architectural Committee. The provisions of this section applicable to materials shall be enforceable pursuant to Section 27 of this Declaration.
4. DWELLING SIZE: The heated habitable floor area (excluding basement) of the main structure exclusive of one-story garages and decks/porches shall not be less than 1500 square feet for a one-story dwelling. For a dwelling of more than one story, the area of the main level (excluding basement) must be a minimum of 960 square feet. Second story square footage must be a minimum of 540 square feet. A Lot Owner shall begin construction within 24 months of purchase. All homes shall be completed within 12 months of initial commencement of construction.
5. BUILDING LOCATION: All structures on any Lot shall be set back at least fifty-five (55) feet from the front property line, at least twenty-five (25) feet from the rear property line and at least twenty-five (25) feet from each side property line. The Association may approve exceptions to these requirements on Lots which, due to topography, make variations necessary. Such modifications shall be made in writing.

6. EASEMENTS: Easements ten (10) feet in width are reserved along the side Lot lines for each Lot and ten (10) feet in width along the front and rear Lot lines for the installation and maintenance of telephone lines, electric lines, water lines, other public utilities, and drainage facilities. To the extent permitted by applicable law, neither the Association nor any utility company using the easements herein referred to, shall be liable for any damage done by them or their assigns, agents, or employees, to shrubbery, trees, or flowers or to the property of the Owner situated in the land covered by such easement, in the installation, maintenance or replacement of any utilities or drainage facilities.

7. NUISANCES: No noxious or offensive activity, commercial or non-commercial shall be carried on upon any Lot, nor shall anything be done thereon which may or may become an annoyance or nuisance to the neighborhood.

8. TEMPORARY STRUCTURES: No structure of a temporary character (i.e., mobile home, trailer, basement, tent, shack, or garage) shall be placed upon any portion of the Subdivision at any time; provided, however, that this shall not apply to shelters used by contractors for construction. Basements or garages shall not at any time be used as residences, temporarily or permanently. During the period of clearing the Lots and construction of homes, all construction equipment, tool sheds, and similar items must be removed upon completion of clearing or construction.

9. DETACHED GARAGES/OUTBUILDINGS/ON-STREET PARKING: No detached garage or outbuilding being an enclosed structure with 4 walls and a roof that is not attached to the home of any kind may be constructed on any Lot. The outbuilding may not be plastic or metal or exceed a size of 8foot x 10 foot or 80 square feet. A garage with a breezeway may be permitted upon approval by the Architectural Control Committee. No on-street parking or owner's property adjacent to the street that is not a driveway within the Subdivision will be permitted.

10. SIGNS: No political signs are allowed. No sign of any kind shall be displayed to the public view on any Lot except one professional sign of not more than five square feet advertising the property for sale or rent, or signs by a builder to advertise the property during the construction and sales period. Nothing in this paragraph shall be construed to prevent the Association from erecting entrance display signs or signs designed to designate areas within The Subdivision including street signs. No sign may be placed on any Common Area without the express prior approval of the Association. Signs placed on such property without prior HOA Board approval shall be deemed abandoned and shall be disposed of at the discretion of the Association.

11. OIL/MINING OPERATIONS: No oil drilling, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted upon any Lot, nor shall oil wells, tanks, tunnels, mineral excavations, or shafts be permitted upon any Lot. No derrick or other structure designed for use in boring for oil or natural gas shall be erected, maintained or permitted upon any Lot.

12. ANIMALS AND FENCES:

A. Animals: Except as otherwise specifically provided herein, no cows, pigs, goats, sheep, horses, or other livestock of any kind shall be raised, bred, or kept on any Lot. No commercial animal raising of any type shall be permitted. No more than two (2) dogs and/or two (2) cats may be kept upon any Lot, provided that all pets be kept, so far as is practicable, inside the home of the Lot Owner and under the control of the Owner and kept in such a manner so as not to become a nuisance or an annoyance to other residents within the Subdivision. No more than four (4) chickens, but no roosters, may be kept on a Lot, provided that all chickens shall be kept in an enclosure, generally under the control of the Owner and kept in such a manner so as not to become a nuisance or an annoyance to other residents within the Subdivision. In no case shall any chicken or other permitted animal be allowed to roam free within the Subdivision.

B. Fences: No fences are permitted unless approved by the HOA Board or the Architectural Committee. All fencing shall be of a decorative material with colors consistent with house colors and shall be well maintained. Chain link and wire fences are prohibited; provided, however, that wire may be added to a fence constructed primarily of an approved material. Underground electric fencing for pets within a yard is acceptable. Fencing where required by law (e.g., surrounding swimming pools) shall be wrought iron, aluminum bar, wooden panels, or decorative masonry unless otherwise specified by law. Any fencing that has already been installed shall be considered “grandfathered in” and the owners will not be required to remove and replace this. Any new fencing, however, should conform to the covenant restrictions.

13. GARBAGE AND REFUSE DISPOSAL: No Lot shall be used or maintained as a dumping ground for rubbish. Trash, garbage or other waste shall not be kept except in sanitary containers. Only yard material such as leaves, limbs, etc. are allowed to be burned on your property and only on “safe burn” days as designated by Buncombe County. All garbage receptacles shall be placed within the rear yard or side yard of a dwelling or in the garage. Due to bear activity, all garbage receptacles should be securely stored until the morning of garbage pickup.

14. SEWAGE DISPOSAL: No individual sewage disposal system shall be permitted on any Lot unless such system is designed, located, and constructed in accordance with the requirements, standards and recommendations of the North Carolina Department of Public Health and/or the Buncombe County Health Department, as applicable. Approval of such a system as installed shall be obtained from such authority. The septic system must be maintained and in good working order. This will include regular pumping of the septic tank and maintenance of the septic field.

15. SIGHT DISTANCE AT INTERSECTIONS: No fence, wall, hedge or shrub planting which obstructs sight lines at elevations between two and six feet above the roadways shall be placed or permitted to remain on any corner Lot.

16. SATELLITE DISHES/TANKS/CLOTHESLINES: No satellite dish, elevated propane tank (greater than 120 gallons) or clothesline may be erected, placed or permitted on any Lot.

Provided, however, that and subject to Federal Communication Commission (FCC) rules and regulations, antennae and satellite dishes for purposes of receiving residential television shall be permitted to be mounted on the house on each Lot; such equipment should be mounted on the side of the house away from the street unless such mounting prohibits signal reception, or except where otherwise prohibited by law.

17. SOLAR PANELS. Solar panels may be installed on Dwellings in the Subdivision. However, their installation is limited to the mounting of solar panels on the roofs of said Dwellings.

18. DRIVEWAYS: Driveways serving Lots shall have a minimum width of at least ten (10) feet of either asphalt, concrete, or other hard surface pavement, for the purpose of preventing the washing of loose stone, gravel, or dirt onto the street or road on which the Lot abuts. Said hard surface material must be in place within twelve (12) months of the start of construction.

19. TRUCKS/UNSIGHTLY-ABANDONED VEHICLES: No trucks larger than one (1) ton may be kept on any Lot for any reason. No motor home, camper, boat, or horse trailer, or abandoned, inoperable, or unsightly vehicles, may be parked on any Lot. This restriction does not apply, however, with reference to a travel trailer, boat, horse trailer, motorcycle or camper if maintained in a completely enclosed garage.

20. CONSTRUCTION DEBRIS/LOT MAINTENANCE: All property Owners shall require all contractors, builders, carpenters, and all other workers in connection with any construction to keep the roads in the Subdivision free of dirt, mud, and debris at all times. Damage to existing roads, landscaping, and utilities during construction will be the responsibility of the Lot Owner(s). During construction, once a driveway has gravel spread, the Lot Owner shall immediately spread and continue to maintain the gravel on said driveway so as to minimize the amount of dirt and debris spread from said Lot to the Subdivision road. Grass and weeds are to be kept down on all Lots (whether occupied or vacant) to prevent an unsightly and unsanitary condition. This is an obligation of the Owner and shall be done at the Owner's expense.

21. AREA LIGHTS: Street lights are provided by the Association through an agreement with Duke Energy Progress. No additional area lights may be placed on any Lot by any Lot Owner without the written consent of the Association. Exterior lighting that is attached to the house, such as flood lights or security lights, shall be permitted but shall be oriented to the largest extent possible to avoid shining on neighboring property.

22. NATIVE GROWTH: It shall be the obligation of the Lot Owner to preserve, so far as it is practicable; the native appearance of each Lot within the Subdivision; no clear-cutting shall be allowed. It is the intent hereof that large trees shall be allowed to exist on all Lots and that extensive plantings and landscaping be provided so that all Lots shall be maintained in such a way as to conform with natural surroundings of the Subdivision.

23. HOMEOWNERS' ASSOCIATION: Each Lot Owner shall automatically become a member of the Forest Knoll Homeowners' Association, Inc., upon acquisition of a Lot within

the Subdivision. The Association shall have the rights, duties, and responsibilities set out in the North Carolina Planned Community Act, Chapter 47F of the North Carolina General Statutes, and otherwise except where inconsistent therewith, according to its Articles of Incorporation, By-Laws and other rules and regulations promulgated by the Association from time to time. Without limiting the generality of the foregoing, the Association shall be responsible for the repair, maintenance, and upkeep of the Common Areas within the Subdivision including limited snow removal in the winter months. The Association shall have the right to impose periodic assessments for necessary maintenance and other Common Expenses within the Subdivision. Enforcement thereof shall be in accordance with this Declaration, the Act, and in accordance with to By-Laws and other rules, regulations, or resolutions in effect at this time or enacted by the Association in the future not inconsistent therewith.

24. COMMON AREA MAINTENANCE: Common property shall consist of and include all property located at the entrance of Forest Knoll Drive, including the land surrounding the main signage located at the entrance and all other street signage. The recorded Plats above refer to designated entrance and access areas, and a “park” area, all of which are also hereinafter designated as Common Areas. The Association shall maintain such Common Areas in good and attractive condition. The Association shall procure and maintain adequate liability coverage for the Common Areas. Failure of said Association to assume the leadership and responsibility in maintaining such Common Areas shall not relieve the Lot Owners from their responsibility in providing their pro-rata share of the costs of maintenance.

25. ROAD MAINTENANCE: The platted roads in the Subdivision are part of the North Carolina State Road System. In the event the Department of Transportation was to lawfully cease its maintenance of the said roads, the Association shall then and in that event properly maintain the said Subdivision roads in an all-weather condition, including drainage thereof.

26. TERM: This Declaration and the restrictive covenants set forth herein are to run with the land and shall be binding on all parties and all persons claiming ownership under them for a period of twenty-five (25) years from the date of this Declaration is recorded, after which time Declaration shall be automatically extended for successive periods of ten (10) years unless an instrument signed by at least sixty-seven percent (67%) of the Owners of the Lots has been recorded, or affirmative vote of such percentage of the Lot Owners is received, as required by the Act, agreeing to change said covenants in whole or in part.

27. ENFORCEMENT: Enforcement shall be by proceedings at law or in equity, including those provisions and procedures contained in Section 47F-3-107.1 of the Act, against any person or persons violating or attempting to violate any covenant either to restrain violation or to recover damages at homeowner’s expense. A Lot Owner may appeal the Board decision. If the Board determine that a fine is to be imposed, the fine shall not exceed one hundred dollars (\$100.00) per day per violation, pursuant to the provisions of the Act.

28. SEVERABILITY: Invalidation of any one of these covenants by judgment or court order shall in no way affect any of the other provisions which shall remain in full force and effect.

29. AMENDMENT: This Declaration may be modified by affirmative vote or written consent of not less than sixty-seven percent (67%) of the Owners of the Lots, in accordance with the Act.

30. ASSESSMENTS: The Association reserves the right to establish rules and regulations for the maintenance of Common Areas (which may include street easements and rights of way and those areas adjoining). The Association shall require the payment of annual assessments from each Lot Owner on a pro-rata basis, which amount shall be based on the cost of annual common expenses and which will be determined by the Board pursuant to the budgeting process. Assessments thus collected shall be expended for the purpose of providing streetlights and maintaining, repairing, constructing, and improving the street rights of way as well as providing for Common Areas maintenance and road maintenance including limited snow removal as provided in this Declaration. The assessment may be changed by a vote of sixty-seven percent (67%) of the Owners who are voting in person or by proxy at an Association meeting called for this purpose.

Annual assessments shall be assessed on a calendar year basis and shall be due and payable on or before March 31 of each calendar year. Such assessments, together with interest at the legal rate for judgments and the costs of collection, shall be charged upon the land and shall be a continuing lien from and after the due date until paid, upon the Lot against which each such assessment is made.

31. DEFINITIONS: The terms defined below shall be deemed to have the meanings specified whenever they appear in this Declaration and in any instrument of the Association unless the context specifies otherwise. These definitions shall apply whether or not the defined terms are capitalized.

"Act" or "Planned Community Act" shall mean and refer to the North Carolina Planned Community Act, as currently codified as Chapter 47F of the North Carolina General Statutes, and as the same may be amended from time to time.

"Association" shall mean and refer to the Forest Knoll Homeowners Association, Inc., a North Carolina nonprofit corporation.

"Common Expenses" means and includes actual and estimated expenses, expenditures, or liabilities incurred by or on behalf of the Association to maintain and operate the Common Areas and to operate the Association for general purposes, including reasonable reserves, all as may be reasonably necessary or appropriate as determined in accordance with the Act, this Declaration, the Articles of Incorporation, Bylaws, and other governing documents of the Association.

"Board of Directors" or "HOA Board" means the board of directors of the Association, which is the governing body of the Association. The Board includes a president, vice-president, secretary and treasurer of the Association and Board.

“Bylaws” means the Bylaws of the Association, as the same may be amended from time to time.

“Declaration” means this Amended and Restated Declaration of Protective Covenants for Forest Knoll Subdivision.

"Dwelling" shall mean and refer to the individual family living unit on an individual Lot.

“Lot” means a separately numbered tract of land lying within the Subdivision as depicted on the Plats.

“Lot Owner” or “Owner” means one or more persons who own a Lot in fee simple.

IN WITNESS WHEREOF, the undersigned officers of Forest Knoll Homeowners Association, Inc. certify that the above Amended and Restated Declaration of Protective Covenants for Forest Knoll Subdivision is duly adopted by the Association and its members and in accordance with the Act.

FOREST KNOLL HOMEOWNERS ASSOCIATION, INC.

BY: *Dann W. Anderson*
DANN W. ANDERSON, President

ATTEST: *Susan Carothers*
Susan Carothers, Secretary

STATE OF NORTH CAROLINA
COUNTY OF BUNCOMBE

I, a Notary Public of the State and County aforesaid, do hereby certify that Susan Carothers personally appeared before me this day and acknowledged that she/he is Secretary of Forest Knoll Homeowners Association, Inc., a North Carolina Nonprofit Corporation, and that by authority duly given and as the act of the corporation, the foregoing instrument was signed in its name by its President, sealed with its corporate seal and attested by him as its Secretary.

Witness my hand and official stamp or seal this the 17th day of MARCH, 2024
Notary Public *[Signature]*

My Commission Expires 5/23/27

Stuart Small
NOTARY PUBLIC
Buncombe County, NC
My Commission Expires May 23, 2027